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8 Attorneys for Plaintiff: Midland Credit Management, Inc

Electronically FILED by
Superior Court of California,
County of Los Angeles
10/30/2024 4:33 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By Z. Pedraza, Deputy Clerk

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES**

Midland Credit Management, Inc,

Plaintiff,

vs.

EVAN NINO MAPOY,

Defendant.

Case No.: 24CHLC00282

**DECLARATION PURSUANT TO CODE
OF CIVIL PROCEDURE §1033**

I declare as follows:

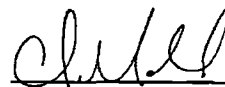
1. I am the attorney of record for the Plaintiff. I have personal knowledge of the facts set forth herein, and if called as a witness I would and could so testify competently.

2. Attached as Exhibit "A" is a true and correct copy of the letter which was mailed to the Defendant advising of Plaintiff's intent to file suit in the Superior Court pursuant to CCP § 1033.

I declare under penalty of perjury that the forgoing is true and correct under the laws of the State of California.

Executed at Chicago, Illinois on October 7, 2024

MANDARICH LAW GROUP, LLP



[X] Christopher D. Mandarich
Attorneys for Plaintiff, Midland Credit
Management, Inc

DECLARATION PURSUANT TO CCP 1033

EXHIBIT A

Please Reply To:

P.O. Box 109032 Chicago, IL 60610
P: 877.285.4918
F: 818.888.1260
www.mandarichlaw.com
You may also contact us via email at
INFO@MANDARICHLAW.COM
December 12, 2023

MANDARICH LAW GROUP, LLP

Attorneys at Law

THIS LAW FIRM EMPLOYS ONE OR
MORE ATTORNEYS ADMITTED TO
PRACTICE IN THE FOLLOWING STATES:

Alaska, California, District of
Columbia, Florida, Georgia, Idaho,
Illinois, Iowa, Kansas, Michigan,
Missouri, Nebraska, Nevada, New
York, North Carolina, Ohio, Oregon,
South Carolina, Virginia, Washington

OF COUNSEL

Thomas M. McGreal (CA, HI)

Sent via US Mail

EVAN NINO MAPOY
19713 LULL ST
WINNETKA CA 91306-2676

Current Creditor:	Midland Credit Management, Inc
Our File No.:	4761528
Original Creditor:	CITIBANK, N.A.
Original Creditor Account No.:	XXXXXXXXXXXX7350
Balance Due:	\$3,115.47
Charge Off Date	01/11/2023

NOTICE OF INTENTION TO SUE AND INCUR COSTS

Dear EVAN NINO MAPOY,

We represent Midland Credit Management, Inc. If we are unable to resolve this matter within ten (10) days of the date of this letter, our client has authorized us to file a lawsuit to collect the balance owing on the above-referenced account.

You are hereby notified that pursuant to California Code of Civil Procedure Section 1033, should legal action result in a judgment against you, you may also be found liable for various court costs, including filing fees and service of process fees.

Please give this matter your prompt attention and contact our office toll-free at 877.285.4918.

Sincerely,
Mandarich Law Group, LLP

**THIS COMMUNICATION IS FROM A DEBT COLLECTOR. THIS IS AN ATTEMPT TO
COLLECT A DEBT, AND ANY INFORMATION OBTAINED WILL BE USED FOR THAT
PURPOSE.**

**MANDARICH LAW GROUP, LLP CALIFORNIA DEBT COLLECTOR LICENSE NUMBER
10795-99.**

SEE REVERSE SIDE OR ATTACHED FOR AN IMPORTANT STATEMENT OF YOUR RIGHTS.



IMPORTANT NOTICE OF RIGHTS

We are required under state and/or federal law(s) to notify consumers of certain rights. This list does not include a complete list of rights you may have under state or federal laws or regulations. Federal Law or other state laws may also provide you with similar or even greater rights.

In California: The state Rosenthal Fair Debt Collection Practices Act and the federal Fair Debt Collection Practices Act require that, except under unusual circumstances, collectors may not contact you before 8 a.m. or after 9 p.m. They may not harass you by using threats of violence or arrest or by using obscene language. Collectors may not use false or misleading statements or call you at work if they know or have reason to know that you may not receive personal calls at work. For the most part, collectors may not tell another person, other than your attorney or spouse, about your debt. Collectors may contact another person to confirm your location or enforce a judgment. For more information about debt collection activities, you may contact The Federal Trade Commission at 1-877-FTC-HELP or www.ftc.gov. As required by law, you are hereby notified that a negative credit report reflecting on your credit record may be submitted by the creditor to a credit reporting agency if you fail to fulfill the terms of your credit obligations.

Mandarich Law Group, LLP | P.O. Box 109032 Chicago, IL 60610, | 877.285.4918